

M/s Siddheshwari Industries Pvt. Limited v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 July 2025 · 2025:AHC:125900-DB · Writ - C No. 33918 of 2014 ·
Writ dismissed following Dev Prayag Paper Mill on additional security.

HEADNOTE

A writ challenging additional security demanded of industrial consumers with load above 45 kW, and the bill applying that levy under paragraph 4.20 of the U.P. Electricity Supply Code, 2005, is dismissed where counsel concedes that Dev Prayag Paper Mill (Pvt.) v. State of U.P. has already decided the issue against the consumer.

FACTUAL SUMMARY

M/s Siddheshwari Industries challenged a 2 April 2014 demand notice by respondent no. 2 imposing additional security on industrial consumers with load above 45 kW, and the bill applying that levy under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. In July 2014 a Division Bench restrained recovery of additional security pending the writ and connected it with a 2009 petition. After prolonged listing, counsel in 2025 fairly conceded that the issue had been decided against consumers in Dev Prayag Paper Mill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security for industrial consumers above 45 kW

HOLDING

A challenge to additional security demanded of industrial consumers with load above 45 kW, and to the bill applying that levy under paragraph 4.20 of the U.P. Electricity Supply Code, 2005, fails where the issue stands decided against the consumer in Dev Prayag Paper Mill (Pvt.) v. State of U.P.; the writ is dismissed for the reasons given in that judgment.

¶ 1-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> 2017 (3) ALJ 497			2	Referred